

SENATE No. 2134**The Commonwealth of Massachusetts**

PRESENTED BY:

James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting the civil rights and inclusion of American Muslims in the commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	
<i>Vanna Howard</i>	<i>17th Middlesex</i>	
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/27/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>3/24/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>3/24/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>4/18/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>4/18/2025</i>
<i>John J. Cronin</i>	<i>Worcester and Middlesex</i>	<i>6/11/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>6/12/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>7/31/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>7/31/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>7/31/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>10/8/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>10/29/2025</i>

SENATE No. 2134

By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 2134) of James B. Eldridge, Vanna Howard and Manny Cruz for legislation to promote the civil rights and inclusion of American Muslims in the commonwealth. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1994 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting the civil rights and inclusion of American Muslims in the commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 3 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 71. (a) There shall be a permanent commission on the status of people who
4 practice Islam consisting of 11 persons as follows: 2 persons appointed by the governor; 1 person
5 appointed by the attorney general; 1 person appointed by the speaker of the house of
6 representatives; 1 person appointed by the president of the senate; 2 persons appointed by the
7 state secretary; 2 persons appointed by the senate chair of the Massachusetts general court's joint
8 committee on racial equity, civil rights, and inclusion; and 2 persons appointed by the house
9 chair of the Massachusetts general court's joint committee on racial equity, civil rights, and
10 inclusion. Members of the commission shall reside in the commonwealth who have

demonstrated a commitment to the Muslim American community. Members shall be subject to the provisions of chapter 268A as they apply to special state employees.

(b) Members shall serve terms of 3 years and until their successors are appointed. Vacancies in the membership of the commission shall be filled by the original appointing authority for the balance of the unexpired term. Nominations for members shall be solicited by the appointing authorities between August 1 and September 16 of each year through an open application process using a uniform application that is widely distributed throughout the state.

(c) The commission shall elect from among its members a chair, a vice chair, a treasurer and any other officers it considers necessary. The members of the commission shall receive no compensation for their services, provided however, that they shall be reimbursed for any usual and customary expenses incurred in the performance of their duties.

(d) The commission shall be a resource to the commonwealth on issues affecting American Muslim communities. In furtherance of that responsibility, the commission shall: (1) promote research and serve as a clearinghouse and source of information on issues pertaining to American Muslims in the commonwealth; (2) inform the public and leaders of business, education, human services, health care, state and local governments and the communications media of the unique cultural, social, ethnic, economic and educational issues affecting American Muslims in the commonwealth; (3) foster unity among the American Muslim community and organizations in the commonwealth by promoting cooperation and sharing of information and encouraging collaboration and joint activities; (4) serve as a liaison between government and private interest groups with regard to matters of unique interest and concern to American Muslims in the commonwealth; (5) identify and recommend qualified American Muslims for

33 appointive positions at all levels of government, including boards and commissions, as the
34 commission considers necessary and appropriate; (6) assess programs and practices in all state
35 agencies as they affect American Muslims, as the commission considers necessary and
36 appropriate; (7) advise executive and legislative bodies on the potential effect on American
37 Muslims of proposed legislation, as the commission considers necessary and appropriate; and (8)
38 generally undertake activities designed to enable the commonwealth to realize the full benefit of
39 the skills, talents and cultural heritage of American Muslims in the commonwealth.

40 (e) The commission shall annually, on or before June 2, report the results of its findings
41 and activities of the preceding year and its recommendations to the governor and to the clerks of
42 the senate and house of representatives.

43 (f) The powers of the commission shall include, but not be limited, to: (1) using the
44 voluntary and uncompensated services of private individuals, agencies and organizations that
45 may from time to time be offered and needed, including the provision of meeting places and
46 refreshments; (2) holding regular, public meetings and holding fact-finding hearings and other
47 public forums as it considers necessary; (3) directing staff to perform its duties; (4) establishing
48 and maintaining offices that it considers necessary, subject to appropriation; (5) enacting by-laws
49 for its own governance that are not inconsistent with any general or special law; and (6)
50 recommending policies and making recommendations to agencies and officers of the state and
51 local subdivisions of government to effectuate the purposes of subsection (d).

52 (g) The commission may request from all state agencies whatever information and
53 assistance the commission requires.

(h) The commission may accept and solicit funds, including any gifts, donations, grants, or bequests, or any federal funds for any of the purposes of this section. These funds shall be deposited in a separate account with the state secretary's office, be received by the state secretary on behalf of the commonwealth, and be expended by the commission in accordance with law.

(i) The commission staff shall consist of a paid executive director, employees and volunteers who assist the commission in effecting its statutory duties. The commission shall appoint the executive director for a term of 3 years.

Section 72. (a) The commission shall:

(i) Report on trends and data related to incidents of Islamophobia and discrimination against American Muslims in the commonwealth;

(ii) Identify and evaluate existing efforts to combat Islamophobia and discrimination in the commonwealth;

(iii) Identify best practices from efforts to combat Islamophobia in other states and jurisdictions;

(iv) Evaluate the commonwealth's hate crime statutes and whether any amendments would better protect residents from Islamophobia and other similar forms of hatred;

(v) Recommend implementation strategies, programs, and legislation to combat Islamophobia in the commonwealth.

The commission shall submit a report of its study and recommendations to the clerks of the house of representatives and the senate and the senate and house committees on ways and means not later than November 30, 2026.

SECTION 2. Notwithstanding section 1, the initial members of the American Muslim commission shall be appointed for the following terms:-

(a) The governor shall appoint, on or before December 1, 2026, 2 members, each for a term of 3 years.

(b) The attorney general shall appoint, on or before December 1, 2026, 1 member for a term of 3 years.

(c) The speaker of the house of representatives shall appoint, on or before December 1, 2026, 1 member for a term of 3 years.

(d) The president of the senate shall appoint, on or before December 1 2026, 1 member for a term of 3 years.

(e) The state secretary shall appoint, on or before December 1, 2026, 2 members, each for a term of 3 years.

(f) The chair of the Senate committee on racial equity, civil rights shall appoint, on or before December 1, 2026, 2 members, each for a term of 3 years.

(g) The chair of the House committee on racial equity, civil rights shall appoint, on or before December 1, 2026, 2 members, each for a 3 year term.

SECTION 3. The executive director of the American Muslim commission, established by section 1, shall initially be appointed by the commissioners for the term of 3 years on or before December 1, 2026.

SECTION 4. Sections 1 to 3, inclusive, shall take effect on December 1, 2026.